

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 9610-001
SUBJECT: Security, Suitability, and Incident Response for High and Maximum Containment Facilities Policy	DATE: July 28, 2022
OPI: Agricultural Research Service	EXPIRATION DATE: July 28, 2027

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1. PURPOSE

- a. This Departmental Regulation (DR) establishes United States Department of Agriculture (USDA) policy to secure pathogens held at USDA high and maximum containment facilities and facilities holding regulated biological select agents and toxins (BSAT). The details of implementation of this policy are in USDA, Departmental Manual, ([DM 9610-001](#)), *Security, Suitability, and Incident Response for High and Maximum Containment Facilities Procedures*.
- b. Security of pathogens held at non-high and maximum containment facilities is covered in another technical facility security manual USDA, [DM 9610-002](#), *Security Policies and Procedures for Laboratories and Technical Facilities (Excluding Biosafety Level (BSL)-3 Facilities)*.
- c. In the near future DM 9610-002 will be updated to be consistent with this directive.

- d. This directive aligns with other USDA safety, physical security, incident response, and information security policies, and meets the requirements of the following policy documents:
- (1) [9 Code of Federal Regulations \(CFR\) § 121](#), *Possession, Use, and Transfer of Select Agents and Toxins*;
 - (2) [7 CFR § 331](#), *Possession, Use, and Transfer of Select Agents and Toxins*;
 - (3) [42 CFR § 73](#), *Select Agents and Toxins*;
 - (4) Department of Homeland Security (DHS), Cybersecurity & Infrastructure Security Agency (CISA), Interagency Security Committee (ISC) Standard, [The Risk Management Process for Federal Facilities](#), 2nd Edition; and
 - (5) Public Law ([P.L.](#)) [107-56](#), *Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism* (USA PATRIOT Act).

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

This directive is effective upon publication and remains in effect until it is superseded or expires.

3. SCOPE

- a. This policy applies to all high containment laboratories, employees, and contractors working for or on behalf of USDA.
- b. This DR contains a uniform set of USDA policies which are intended to cover USDA laboratories that work with or have the capacity to work with pathogens requiring high containment (i.e., High Consequence Biological Agents (HCBA)) and BSAT. Each high and maximum containment facility will create or modify an existing plan for physical security that is distinct from their own biorisk management or incident response plans. The plans must adhere to the Centers for Disease, Control, and Prevention (CDC), [Security Plan Guidance, 42 CFR § 73.11, 7 CFR § 331.11, and 9 CFR § 121.11](#).
- c. The USDA conducts research and regulatory activities, including detection and diagnosis, to protect American agriculture, forestry, and human health from pests and pathogens. USDA scientists utilize pathogens in their research and diagnostic activities that could constitute a threat to either human, animal, and plant health, or productivity of the agriculture system if purposely or inadvertently released into the environment.

- d. The policies in this DR are subject to periodic review as directed by USDA policy, or more frequently if conditions warrant earlier review.

4. BACKGROUND

- a. This policy will define USDA requirements to secure BSAT or other critical HCBA.
- b. The USDA agencies and staff offices, centers, and laboratories foster a culture of safety. All USDA employees and contractors at biocontainment facilities are ultimately responsible for safety and security. The USDA employs biorisk management, safety, and security professionals as technical resources who are responsible for managing and directing the safety and security program(s) of USDA biocontainment laboratories. Supervisors and managers at all levels within USDA are responsible for implementing operational safety and security programs, with direct oversight assigned to researchers and diagnosticians.

5. POLICY

- a. Ensure appropriate levels of protection against unauthorized access, theft, diversion, loss of custody of biologically hazardous agents, or BSAT through the use of graded protection and in accordance with the potential consequences of release and based on a site-specific physical security risk assessment. Security program elements must include:
 - (1) Materials inventory and accountability;
 - (2) Physical security;
 - (3) Cybersecurity;
 - (4) Personnel suitability and insider threat awareness;
 - (5) Incident response;
 - (6) Training and appropriate follow-up activities; and
 - (7) Likelihood and consequences of release.
- b. Ensure alignment of those entities that possess, use, or transfer BSAT with applicable regulations (7 CFR Part 331 (Plant); 9 CFR Part 121 (Animal); and 42 CFR Part 73 (Human)), and best practices in biological safety, industrial hygiene, physical security, and biorisk management.

- c. Ensure specialized equipment compliance with Section 508 accessibility requirements by forwarding all purchases to the USDA Office of the Chief Information Officer (OCIO). See [DR 4030-001](#), *Section 508 Program*.

6. ROLES AND RESPONSIBILITIES

- a. The USDA Secretary, or their designated responsible staff will:
 - (1) Develop, publish, and actively maintain policies, regulations, and compliance requirements for safety, biorisk management, biosecurity, physical security, incident response, personnel suitability, or information security, including actively providing channels for agency and staff office input into and approval of the same; and
 - (2) Provide management and oversight activities as required to ensure effective safety, biorisk management, physical security, incident response, personnel suitability, and information security program implementation:
 - (a) Reviewing and monitoring compliance to established policy requirements and standards with minimal disruption to business functions or mission requirements; and
 - (b) Reporting compliance and deviations per Office of Management and Budget (OMB) requirements.
- b. Agency and staff officials will:
 - (1) Develop and implement internal procedures and controls in support of the requirements and standards of this policy;
 - (2) Establish effective communication between internal stakeholders and an identified Point of Contact (POC) in the Department, agencies, and staff offices;
 - (3) Incorporate the policies, requirements, and standards into agency and staff office capital planning and investment control processes;
 - (4) Provide resources for appropriate training programs, including developing tools (e.g., training modules) for use by location staff to institute the mandated training programs; and
 - (5) Direct random reviews of materials accountability records.
- c. Center Directors, Laboratory Chiefs or Directors, and Research Leaders, or their delegated responsible staff (as appropriate) will:

- (1) Individually or collectively ensure effective safety, biorisk management, security, and incident response implementation at their facility or location, including access control;
 - (2) Provide resources for implementation of a robust safety and security program, including, but not limited to, training on, and monitoring of, safety and security policies and programs;
 - (3) Determine and document the level of competency of trained individuals on a regular basis and institute additional training as needed;
 - (4) Maintain a current, centralized master database for materials accountability;
 - (5) Ensure applicable Departmental, agency, staff office, and required regulatory reporting requirements are completed in a timely fashion;
 - (6) Assume or delegate the role of Incident Commander when necessary, consistent with Homeland Security Presidential Directive [\(HSPD\)-5](#), *Management of Domestic Incidents*, and [HSPD-8](#), *National Preparedness*; and
 - (7) Conduct drills or exercises on a regular basis to test and evaluate the effectiveness of the security plan. Organizations shall document the results of the exercise, to include procedures confirmed or problems identified. Refer to the CDC, [Drills and Exercises Guidance](#), [7 CFR § 331.11](#), [9 CFR § 121.11](#), [42 CFR § 73.11 \(Security\)](#), [7 CFR § 331.12](#), [9 CFR § 121.12](#), [42 CFR § 73.12 \(Biosafety\)](#), [7 CFR § 331.14](#), [9 CFR § 121.142](#), [42 CFR § 73.14 \(Incident Response\)](#).
- d. Principal Investigators, Lead Scientists, or their delegated responsible staff as appropriate will:
- (1) Individually and collectively ensure effective safety, biorisk management, personnel suitability, physical security, incident response, and information security implementation at their facility or location;
 - (2) Maintain inventory and materials accountability records; and
 - (3) Ensure applicable Departmental, agency, staff office, and other required regulatory reporting requirements are completed in a timely fashion.
- e. All location staff with programmatic duties for safety or security such as Location Biorisk Managers, Quarantine Officers, Collateral Duty Safety Officers, Personnel Suitability (Human Resources) Specialists, Physical Security Specialists, Information Management Directors, and System Administrators will:

- (1) Individually or collectively ensure effective safety, biorisk management, personnel suitability, physical security, incident response, and information security implementation at their facility or location;
 - (2) Work with local line managers to ensure laboratories are adhering to Departmental, agency, staff office, and site policy on safety, biorisk management, personnel suitability, physical security, incident response, and information security programs; and
 - (3) Serve as a resource for safety, biorisk management, personnel suitability, physical security, incident response, and information security program implementation, quality control, inspections, and training.
- f. All USDA staff and contractors will:
- (1) Actively participate as appropriate to ensure effective safety, biorisk management, personnel suitability, physical security, incident response, and information security implementation at their facility or location; and
 - (2) Work with local line managers as appropriate to support their location's adherence to Departmental, agency, staff office, and site policy on safety, biorisk management, biosecurity, personnel suitability, physical security, incident response, and information security programs.

7. POLICY EXCEPTIONS

- a. All USDA agencies and staff offices must conform to this policy; however, in the event that a specific policy requirement cannot be met as explicitly stated, agencies and staff offices must submit a waiver request. The waiver request must explain the reason for the request, identify mitigating controls or actions that meet the intent of the policy, and identify how the mitigating controls or actions provide a similar or greater level of safety and security or compliance than the policy requirement.
- b. Requests for waivers will be considered on a case-by-case basis, and in the majority of cases, can be resolved between the field and staff levels. Agencies and staff offices should address all policy waiver request memorandums to their individual safety, biorisk management, physical security, incident response, personnel security, or cybersecurity POCs as appropriate.
- c. Unless otherwise specified, agencies and staff offices must review and renew approved policy waivers every fiscal year. Approved waivers must be tracked as a plan of action and milestones item if the mitigation proposed was working toward policy compliance over time. When completed and instituted, approved waivers for specialized equipment and facilities requirements or enhancements with a continuing need will simply be tracked on an approved list.

- d. The appropriate agency or staff office-level office must monitor and approve waivers to this policy internally. Consultation with additional Departmental resources or subject matter experts on changing conditions as waivers are monitored will be pursued on a case-by-case basis.
- e. The written waiver request (request for exception) must be in the form of a decision memorandum and must include:
 - (1) Being addressed to the appropriate agency or staff office resource (e.g., Associate Administrator of National Programs, Associate Administrator of Research Operations, etc.) through the lead security professional (Director level);
 - (2) Name of submitting agency or staff office;
 - (3) Name, contact information, signature of submitting person; and
 - (4) Description of the policy exception requested:
 - (a) Justification to show good cause for the exception. The request should document the justifications for the exception; and
 - (b) The impact of granting versus not granting the request.

8. INQUIRIES

Address inquiries concerning this DR to the Agriculture Research Service (ARS) Homeland Security Division (HSD), via email at, ARSHomelandSecurityDivision@usda.gov mailbox.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

APHIS	Animal and Plant Health Inspection Service
ARS	Agriculture Research Services
BMBL	Biosafety in Microbiological and Bio Medical Laboratories
BSAT	Biological Select Agents and Toxins
BSL	Biosafety Level
CCL	Commerce Control List
CDC	Centers for Disease, Control, and Prevention
CFR	Code of Federal Regulations
CISA	Cybersecurity and Infrastructure Security Agency
DHS	Department of Homeland Security
DM	Departmental Manual
DR	Departmental Regulation
EO	Executive Order
FIPS PUB	Federal Information Processing Standards Publication
FSAP	Federal Select Agent Program
HCBA	High Consequence Biological Agents
HHS	Health and Human Services
HMR	Hazardous Materials Regulations
HSD	Homeland Security Division
HSPD	Homeland Security Presidential Directive
IATA	International Air Transport Association
ICAO	International Civil Aviation Organization
ISC	Interagency Security Committee
IT	Information Technology
NARA	National Archives and Records Administration
NIH	National Institutes of Health
NIST	National Institutes of Standards and Technology
OCIO	Office of the Chief Information Officer
OHS	Office of Homeland Security
OHSEC	Office of Homeland Security and Emergency Coordination (renamed OHS in 2018)
OMB	Office of Management and Budget
OSHA	Occupational Safety and Health Administration
PATRIOT	Providing Appropriate Tools Required to Intercept and Obstruct Terrorism
P.L.	Public Law
POC	Point of Contact
PDD	Presidential Decision Directive
PPD	Presidential Policy Directive
PPQ	Plant Protection and Quarantine
SP	Special Publication
U.S.C.	United States Code

USDA
USPHS
WHO

United States Department of Agriculture
United States Public Health Service
World Health Organization

APPENDIX B
AUTHORITIES AND REFERENCES

[5 CFR § 731](#), *Suitability*

[5 CFR § 732](#), *National Security Positions*

[7 CFR § 2](#), *Delegations of Authority by the Secretary of Agriculture and General Officers of the Department*

[7 CFR § 2.95](#), *Director, Office of Homeland Security*

[7 CFR § 330.200](#), *Subpart B – Movement of Plant Pests, Biological Control Organisms, and Associated Articles*

[7 CFR § 331](#), *Possession, Use, and Transfer of Select Agents and Toxins*

[9 CFR § 121](#), *Possession, Use, and Transfer of Select Agents and Toxins*

[9 CFR § 122](#), *Organisms and Vectors*

[15 CFR § 742](#), *Control Policy, Commerce Control List (CCL), Based Control*

[29 CFR § 1910.1030](#), *Occupational Safety and Health Administration (OSHA), Bloodborne Pathogens*

[32 CFR § 147](#), *Adjudicative Guidelines for Determining Eligibility for Access to Classified Information*

[39 CFR § 111](#), *General Information on Postal Service*

[41 CFR § 101](#), *Subtitle C – Federal Property Management Regulations System*

[42 CFR § 70](#), *U.S. Public Health Service (USPHS), Interstate Quarantine*

[42 CFR § 71](#), *Foreign Quarantine*

[42 CFR § 71.54](#), *Import Regulations for Infectious Biological Agents, Infectious Substances, and Vectors*

[42 CFR § 73](#), *Select Agents and Toxins*

[49 CFR §§ 171-177](#), *Subchapter - Hazardous Materials Regulations (HMR)*

[49 CFR § 173.134](#), Class 6, Division 6.2, *Definitions, Exemptions*

44 United States Code (U.S.C.), Chapter 35, [Section 3551](#), *et seq.*, Page 161, Subchapter II, *Information Security*

CDC, [Drills and Exercises Guidance, 7 CFR § 331.11, 9 CFR § 121.11, 42 CFR § 73.11 \(Security\), 7 CFR § 331.12, 9 CFR § 121.12, 42 CFR § 73.12 \(Biosafety\), 7 CFR § 331.14, 9 CFR § 121.142, 42 CFR § 73.14 \(Incident Response\)](#), August 2017

CDC, [Guidance on the Inventory of Select Agents and Toxins, 7 CFR Part 331, 9 CFR Part 121, 42 CFR Part 73](#), December 2020

CDC, [Security Plan Guidance, 42 CFR § 73.11, 7 CFR § 331.11, and 9 CFR § 121.11](#), February 2020

[Code of Federal Regulations](#) (Annual Edition)

DHS, Interagency Security Committee (ISC), [Best Practices for Armed Security Officers in Federal Facilities](#), 2nd Edition, April, 2013

DHS, ISC, [Best Practices for Mail Screening and Handling Processes: A Guide for the Public and Private Sectors](#), 1st Edition, September 27, 2012

DHS, ISC, [Items Prohibited from Federal Facilities](#), February 2013

DHS, ISC, [Policies, Standards, Best Practices, Guidance, and White Papers](#) website

DHS, ISC, [The Risk Management Process for Federal Facilities: An Interagency Security Committee Standard](#), 2nd Edition, November 2016

[Executive Order \(EO\) 12923](#), *Continuation of Export Control Regulations*, June 30, 1994; continuation of the principles of the expired *Export Administration Act of 1979*

Federal Select Agent Program (FSAP), [2020 Annual Report of the Federal Select Agent Program](#), 2020

Health and Human Services (HHS), [Publication No. \(CDC\) 21-1112, Biosafety in Microbiological and Biomedical Laboratories \(BMBL\)](#), 6th Edition, Revised June 2020

Homeland Security Presidential Directive [\(HSPD\)-5](#), *Management of Domestic Incidents*, February 28, 2003

[HSPD-8](#), *National Preparedness*, December 17, 2003

[HSPD-12](#), *Policy for a Common Identification Standard for Federal Employees and Contractors*, August 27, 2004

International Air Transport Association (IATA), [*Dangerous Goods Regulations*](#), 40th Edition, 1999

International Civil Aviation Organization (ICAO), [*Technical Instructions for the Safe Transport of Dangerous Goods by Air*](#), 2017-2018 Edition

National Archives and Records Administration (NARA), Office of Chief Records Officer, General Records Schedule 5.6: *Security Records*, [Section 090](#), *Records of routine security operations*, April 2020

National Institutes of Health (NIH), [*NIH Guidelines for Research Involving Recombinant or Synthetic Nucleic Acid Molecules*](#), March 2022

National Institute of Standard and Technology (NIST), Federal Information Processing Standards Publication [\(FIPS PUB\) 140-3](#), *Security Requirements for Cryptographic Modules*, March 22, 2019

NIST, [FIPS PUB 199](#), *Standard for Security Categorization of Federal Information and Information Systems*, February 2004

NIST, [FIPS PUB 200](#), *Minimum Security Requirements for Federal Information and Information Systems*, March 2006

NIST, Computer Security Resource Center, [Glossary](#), retrieved on March 22, 2022

NIST, Special Publication [\(SP\) 800-37](#), Revision 2, *Risk Management Framework for Information Systems and Organizations*, December 2018

NIST [SP 800-53](#), Revision 5, *Security and Privacy Controls for Information Systems and Organizations*, September 2020, including updates as of December 10, 2020

NIST, [SP 800-60](#), Volume 1, Revision 1, *Guide for Mapping Types of Information and Information Systems to Security Categories*, August 2008

NIST, [SP 800-70](#), Revision 4, *National Checklist Program for IT Products – Guidelines for Checklist Users and Developers*, February 2018

[*National Security Act of 1947*](#), dated July 26, 1947, as amended

Office of the Director of National Intelligence, [Security Executive Agent Directive 6](#), *Continuous Evaluation*, January 12, 2018

Office of Management and Budget (OMB), [Circular A130, Appendix III](#), *Security of Federal Automated Information Resources* website

Presidential Decision Directive ([PDD](#))-12, *Security Awareness and Reporting of Foreign Contacts*, August 5, 1993 website

Presidential Policy Directive ([PPD](#))-21, *Critical Infrastructure Security and Resilience*, February 12, 2013

Public Law ([P.L.](#)) 107-56, *Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT Act) Act of 2001*, October 26, 2001

[P.L. 107-188](#), *Public Health Security and Bioterrorism Preparedness and Response Act of 2002*, June 12, 2002

Office of the Director of National Intelligence, [Security Executive Agent Directive 6](#), *Continuous Evaluation*, January 12, 2018

USDA, [National Import Export Services](#), *APHIS Veterinary Services, National Import Export Services (formerly the National Center for Imports and Exports), Animal Products Permitting and Negotiation Services (formerly the Products Program)* website

USDA, Animal and Plant Health Inspection Service (APHIS), Plant Protection and Quarantine (PPQ) Program, [Plant Health \(PPQ\)](#) website

USDA, [DM 3510-000](#), *Information Technology (IT) Restricted Space*, August 19, 2004

USDA, [DM 3510-001](#), Chapter 2, Part 1, *Physical Security Standards for Information Technology (IT) Restricted Space*, August 19, 2004

USDA, [DM 4620-002](#), *Common Identification Standard for U.S. Department of Agriculture*, December 9, 2021

USDA, [DM 9610-001](#), *Security, Suitability, and Incident Response for High and Maximum Containment Facilities Procedures*, forthcoming

USDA, [DM 9610-002](#), *Security Policies and Procedures for Laboratories and Technical Facilities (Excluding Biosafety Level (BSL)-3 Facilities)*, April 30, 2003

USDA, [DR 1650-002](#), *Building Safety/Security Occupant Emergency Program*, October 7, 1992

USDA, [DR 1800-001](#), *Incident Preparedness, Response, and Recovery*, February 9, 2022

USDA, [DR 3300-001](#), *Telecommunications & Internet Services and Use*, March 18, 2016

USDA, [DR 3440-002](#), *Control and Protection of "Sensitive Security Information,"* January 30, 2003

USDA, [DR 3441-001](#), *Sensitive Compartmented Information Security Program*, January 18, 2012

USDA, [DR 3500-3599](#), *Cybersecurity*

USDA, [DR 3505-003](#), *Access Control for Information and Information Systems*, July 17, 2019

USDA, [DR 3505-005](#), *Cybersecurity Incident Management Procedures*, November 30, 2018

USDA, [DR 3520-002](#), *Configuration Management*, July 17, 2019

USDA, [DR 3540-003](#), *Security Assessment and Authorization*, August 12, 2014

USDA, [DR 3545-001](#), *Information Security Awareness and Training Policy*, October 22, 2013

USDA, [DR 3565-003](#), *Plan of Action and Milestone Policy*, September 25, 2013

USDA, [DR 4000-4999](#), *Human Resources Management*

USDA, [DR 4030-001](#), *Section 508 Program*, September 8, 2014

USDA, [DR 4070-735-001](#), *Employee Responsibilities and Conduct*, October 4, 2007

USDA, [DR 4400-007](#), *Biorisk Management Policy*, September 3, 2020

USDA, [DR 4600-003](#), *Defensive Counterintelligence and Insider Threat Programs*, July 12, 2021

USDA, [DR 4600-004](#), *Foreign Visits and Assignments Vetting*, May 27, 2021

USDA, [DR 4610-001](#), *Security Screening Unit Procedures*, December 9, 2021

USDA, [DR 4620-002](#), *Common Identification Standard for U.S. Department of Agriculture*, June 24, 2021

USDA, [DR 9630-001](#), *Policies and Procedures on Biohazardous Waste Decontamination, Management, and Quality Controls at Laboratories and Technical Facilities*, June 18, 2009

USDA, Director, Office of Homeland Security and Emergency Coordination (OHSEC), Memorandum from Mr. Todd H. Repass, Jr., [Prioritization/Protection of USDA Facilities](#), January 23, 2012

USDA, OHSEC [Personnel and Document Security Division](#) website

US Department of Commerce, [Bureau of Industry and Security, Commerce Control List](#)

World Health Organization (WHO), [*Guidelines for the Safe Transport of Infectious Substances*](#), 2021-2022

WHO, [*Laboratory Biosafety Manual*](#), 4th Edition, December 21, 2020